

for status of Judgment, which is to be prepared and submitted by counsel for the Defendant within two weeks.

3. 24CV02857 PLATTS, TOBIAS, II ET AL v. JOHNSON, MARK ET AL

EVENT: Defendants' Motion for Sanctions for Failure to Comply with the Court's July 1, 2026 Order Compelling Further Discovery Responses; Request for Terminating and Monetary Sanctions

The Proof of Service indicates that the Motion was served electronically on July 17, 2026, which is only 13 Court days' notice. Pursuant to *Code of Civil Procedure* §1005(b), an additional 3 Court days' notice is required, and pursuant to *Code of Civil Procedure* §1010.6(3)(B), an additional 2 Court days' notice is required for electronic service. Thus, notice here is insufficient. Additionally, the Court notes that the Motion was served on counsel ilan@hotelinjurylaw.com however, the only email address in the Court's file is litigation@hotelinjurylaw.com, so notice is insufficient in this regard as well. The Motion is continued to September 2, 2026 at 9:00 a.m. to allow for proper notice and the filing of an additional proof of service. The Court vacates the Mandatory Settlement Conference on August 24, 2026 and sets the Mandatory Settlement Conference for September 11, 2026 at 3:00 p.m. with Judge Philip Heithecker.

4. 24CV03259 PARK, LISA ET AL v. GOSSAGE, IVAN

EVENT: Plaintiffs' Motion to Continue Trial Date, Trial Readiness Conference, Discovery, and all Trial Related Deadlines

Plaintiffs' Motion to Continue Trial Date, Trial Readiness Conference, Discovery, and all Trial Related Deadlines is denied, the Court not finding good cause for the requested continuance. The Court confirms the Trial Readiness Conference on August 13, 2026 at 1:30 p.m. and the Jury Trial on August 17, 2026 at 8:00 a.m. with a 3-day estimate.

5-6. 25CV01669 CONNELL, ZACKARY v. CRAFT, SHEILA ET AL

*EVENTS: (1) Defendant Melissa Crick's Motion to Strike Re: First Amended Complaint
(2) Zachary Connel's Motion to Strike Defendant Sheila Craft's Jury Demand*

The Court is in receipt of an untimely opposition, filed by Plaintiff Zachary Connell on July 28, 2026, the day before the reply was due pursuant to *Code of Civil Procedure* §1005(b). That Section requires an opposition be filed and served no later than 9 Court days before the hearing, which here was July 23, 2026. The Opposition is untimely and pursuant to Butte County Local Rule 3.11B, the Court refuses to consider such. Defendant Melissa Crick's Motion to Strike Re: First Amended Complaint is deemed unopposed and is granted. Counsel for Defendant shall prepare and submit a form of order within two weeks.

The Court also notes that on July 28, 2026 at the same time Plaintiff filed his untimely Opposition, he also filed a Motion to Strike Defendant Sheila Craft's Jury Demand with a hearing set for August 5, 2028, 8 days later. *Code of Civil Procedure* §1005(b) requires no less than 16 Court days' notice. So, even if the Motion were served the day it was filed, which is just an assumption given that there is no proof of service, notice is wholly insufficient. The Motion is denied.

7. 25CV03849 WILSON, MACY v. CRANDALL, JASON OWENS ET AL

EVENT: Motion for Order to Bifurcate Plaintiff's Claims Against North State Water Testing/Pump, LLC from Plaintiff's Other Claims

Defendant North State Water Testing/Pump, LLC's ("Defendant" herein) Request for Judicial Notice is granted. However, while these filings will be considered for the limited fact that each party made the representations reflected in its respective filings, the Court agrees with the Plaintiff Macy Wilson ("Plaintiff" herein) that they do not establish the truth of underlying factual assertions regarding the transaction, the alleged scope of any defendant's work, the relationship among the claims, causation, damages, or whether separate trials would promote convenience, avoid prejudice, or further expedition and economy under *Code of Civil Procedure* §§598 and 1048(b).

Plaintiff's Evidentiary Objections are overruled.

The Court finds that based upon the allegations in the First Amended Complaint, bifurcation would not aid or result in the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation (*Code of Civil Procedure* §598), nor the furtherance of convenience or to avoid prejudice, or expedition and economy (*Code of Civil Procedure* §1048(b)). Thus, bifurcation is not warranted here and the Motion for Order to Bifurcate Plaintiff's Claims Against North State Water Testing/Pump, LLC from Plaintiff's Other Claims is denied. Counsel for the Plaintiff shall prepare and submit a form of order consistent with this ruling within two weeks.

8. 25CV04232 CTL FORESTRY MANAGEMENT, INC v. FUGUE LAUMAN LLC ET AL

EVENT: Cross-Defendant Ceres Environmental Services, Inc. and David Anders McIntyre's Demurrer to Cross-Complainant Emshire LLC's Cross-Complaint

As to the statute of limitations, the Court finds that the running of the statute of limitations does not appear "clearly and affirmatively" on the face of the Cross-Complaint and Cross-Complainant Emshire LLC ("Emshire" herein) has sufficiently alleged facts to support at least one doctrine (delayed discovery) that would toll the statute of limitations. See Cross-Complaint at Paragraphs 3, 4, 9, 11, 50-53, 55-57. The Demurrer is overruled on that basis.

To invoke the alter ego doctrine, Emshire must allege both: (1) a "sufficient unity of interest and ownership between the corporation and the individual or organization